

HOUSE No. 1783

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act removing state funded counsel for sex offender classification hearings.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/14/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/28/2025</i>
<i>David K. Muradian, Jr.</i>	<i>9th Worcester</i>	<i>1/29/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/30/2025</i>
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>2/11/2025</i>

HOUSE No. 1783

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1783) of Bradley H. Jones, Jr., and others relative to removing state funded counsel for sex offender classification hearings. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1678 OF 2021-2022.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act removing state funded counsel for sex offender classification hearings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 178L of chapter 6 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking in paragraph (a), in lines 26 through 28,
3 inclusive, the words, “his right to retain counsel to represent him at such hearing and his right to
4 have counsel appointed for him if he is found to be indigent as determined by the board using the
5 standards under chapter 211D; provided, however, that such indigent offender may also apply for
6 and the board may grant payment of fees for an expert witness in any case where the board in its
7 classification proceeding intends to rely on the testimony or report of an expert witness prepared
8 specifically for the purposes of the classification proceeding.”, and inserting in place thereof the
9 words: “and his right to retain counsel to represent him at such hearing.”

SECTION 2. Section 178L of chapter 6 of the General Laws, as so appearing, is hereby amended by striking in paragraph (c), in lines 65 through 73, inclusive, the words, “his right to retain counsel to represent him at such hearing and his right to have counsel appointed for him if he is found to be indigent as determined by the board using the standards under chapter 211D; provided, however, that such indigent offender may also apply for and the board may grant payment of fees for an expert witness in any case where the board in its classification proceeding intends to rely on the testimony or report of an expert witness prepared specifically for the purposes of the classification proceeding.”, and inserting in place thereof the words:- “and his right to retain counsel to represent him at such hearing.”

SECTION 3. Section 178L of chapter 6 of the General Laws, as so appearing, is hereby amended by striking in subsection (2), in lines 84 through 87, inclusive, the sentence “The board shall inform offenders requesting a hearing under the provisions of subsection (1) of their right to have counsel appointed if a sex offender is deemed to be indigent as determined by the board using the standards under chapter 211D.”

SECTION 4. Section 178M of chapter 6, as so appearing in the 2022 Official Edition, is hereby amended by striking the following, “The court shall, if requested, appoint counsel to represent the sex offender in the proceedings if such sex offender is deemed indigent in accordance with section 2 of chapter 211D.”